

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
GAINESVILLE DIVISION

CHRISTOPHER CARRELHA, et al.,

Plaintiffs,

v.

MEB LOAN TRUST VIII, et al.,

Defendants.

CIVIL ACTION FILE

NO. 2:26-cv-00110-RWS-AWH

Judge Richard W. Story

Magistrate Judge Anna W. Howard

MATTER STATUS AND DECISION MEMORANDUM

PURPOSE AND LIMITS OF THIS MEMORANDUM

This is internal work product. It is not a filing, it has not been served on anyone, and nothing in it has been sent to a court. Every statement below is labelled for what it rests on: [VERIFIED] for a document read directly, [ALLEGED] for a party's assertion, [COURT - FOUND] for a court's own finding, [INFERENCE] for a conclusion drawn from verified facts, and [UNRESOLVED] for a question the record does not answer.

Two ceilings apply throughout and are not repeated at every line. No PACER access was available, so no docket entry has been confirmed against the docket itself. No commercial citator was available, so no authority is described as good law above **citator-limited medium** confidence.

WHERE THE CASE STANDS

[COURT - FOUND] Doc. 34 (SRC-010). On 20 July 2026, Judge Story denied remand and denied the preliminary-injunction motion as moot, and directed that Defendants give Plaintiffs and the Court at least sixty days' advance notice before any foreclosure. The motions to dismiss were referred to the magistrate judge.

[COURT - FOUND] Doc. 35 (SRC-011). On 31 July 2026, Magistrate Judge Howard held the complaint to be a type-one shotgun pleading, directed an amended complaint, and cautioned that dismissal could follow. Docs. 4 and 5 were denied as moot with leave to renew, and Defendants were given fourteen days from the filing of the amended complaint to respond.

[UNRESOLVED] **Which complaint is now operative is not established.** Two candidate first amended complaints exist in the client repository: a nine-count draft with section-restarting numbering that names Lendage in the caption and pleads a \$5,200 wire, and a sixteen-count document dated 19 August 2026 with continuous numbering that drops both. Neither has been confirmed as filed, because the docket has not been read. Nothing else in this memorandum should be relied on for a filing decision until that is answered.

THE THREE FINDINGS THAT CARRY THE MOST WEIGHT

1 · The ledger stops moving, and the fee column does not

[VERIFIED] The servicing history records a principal balance frozen at \$140,288.02 from 21 December 2023 onward, while twenty-seven fee entries totalling \$8,408.74 continue to accrue against the account.

[VERIFIED] Four 2025 trial-plan tenders of \$1,899.56 each appear. Three are reversed by entries booked at \$0.00. The fourth, tendered 17 May 2025, is never reversed, and its amount equals the ending unapplied balance.

[INFERENCE] The unreversed tender and the ending unapplied balance being the same figure is consistent with a payment received and never applied. It is not proof of one. The servicer's transaction-code key and cash-application detail would settle it, and neither has been produced.

2 · Two records name different owners

[VERIFIED] A MERS ServicerID result retrieved 24 March 2026 names FREED Mortgage Trust 2022-HE1 as investor. [ALLEGED] A Shellpoint letter names MEB Loan Trust VIII Trust, c/o US Bank Trust National Association. [ALLEGED] The assignment pleaded at Deed Book 11187, page 717, recites MEB as a corporation organised under the laws of New York.

[UNRESOLVED] No note, allonge, security deed, assignment instrument, trust agreement or loan schedule has been read. The conflict is recorded; its significance is not established, and a borrower's standing to raise it is an open legal question.

3 · The funding gap is the count that does not depend on standing

[ALLEGED] The origination is pleaded as a 21 July 2022 line of credit from Lendage LLC with a \$149,650.00 limit, of which \$51,409.50 is alleged to have reached the borrower's account on 5 August 2022.

[INFERENCE] A failure-of-consideration theory turns on what was funded rather than on who owns the instrument, so it does not depend on resolving the ownership conflict.

[UNRESOLVED] The bank records that would establish what was actually funded have not been produced.

WHAT IS WAITING ON A DECISION

Ref	Question	Why it blocks	Who must answer
HD-1	Which procedural response is filed, and when	Every downstream task depends on it	Attorney / client
HD-2	Which of the two candidate complaints is operative	Determines what is being amended	Attorney, from the docket
OFQ-1	Is the 21 August 2026 deadline still live	Cannot be computed from the record	Attorney, from the docket
OLQ-5	What <i>Ames v. JP Morgan Chase</i> actually holds	The standing analysis rests on it, unread	Research
OLQ-6	The 15 U.S.C. § 1692k(d) limitations period	The FDCPA count rests on it, unread	Research
OLQ-7	The element formulations for every count	The survival matrix rests on them, unresearched	Research

THE RISK THAT SHOULD BE STATED PLAINLY

[VERIFIED] In *Vibe Micro, Inc. v. Shabanets*, 878 F.3d 1291, 1309 (11th Cir. 2018), the court wrote that the plaintiff "is not entitled to another chance to replead," having been given "specific instructions on how to properly do so," and declined to "adopt a rule requiring district courts to endure endless shotgun pleadings."

[INFERENCE] Doc. 35 gave specific repleading instructions. An amended complaint that does not follow them faces this authority directly. [VERIFIED] The same opinion holds at 1308–09 that state-law claims dismissed on Rule 8 grounds should be dismissed without prejudice as to refile in state court, which preserves the Georgia claims if the federal case does not survive.

[UNRESOLVED] *Vibe Micro* expressly reserved the position of a party proceeding pro se, at 1308 n.6. It does not decide the question either way, and should not be cited as though it did.

WHAT HAS NOT BEEN READ

No PACER docket. No motion to dismiss and no exhibit to one. No note, allonge, security deed, assignment, trust agreement or loan schedule. No credit report or ACDV. No notice of error or request for information. No loan modification agreement. No employment documents. No bank records. Counts X through XVI of the sixteen-count document were read at heading level only. Twenty-one evidentiary gaps are recorded in the matter pack, nine of them at priority one, each with the custodian most likely to hold the missing material.

Prepared for attorney review,

This 21st day of September, 2026.

Litigation OS — matter-operations-manager

Matter CARRELHA-2026

Not for filing. Not served. Not sent.